

Bihar Land Mutation Rules, 2012

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State of Bihar - Act

Bihar Land Mutation Rules, 2012

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Bihar Land Mutation Rules, 2012

Rule BIHAR-LAND-MUTATION-RULES-2012 of 2012

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Bihar Land Mutation Rules, 2012

Published vide Notification No.-8/Niyam Sanshodhan-07-08/2016-04(8)/Ra, dated 2.1.2018

No.-8/Niyam Sanshodhan-07-08/2016-04(8)/Ra. - In exercise of the powers conferred by Section-22 of the Bihar Land Mutation Act, 2011, the State Government hereby amend the Bihar Land Mutation Rules, 2012 and make the following Amendment Rules:-

Chapter-I

1.

Short title, extent and Commencement.

(1)

These rules may be called "The Bihar Land Mutation (Amendment) Rules, 2017.

(2)

It shall extend to the whole of the State of Bihar.

(3)

It shall come into force with immediate effect.

2.

Definitions

- In these rules unless there is anything repugnant in the subject or context, definitions of words given in Section-2 of the Bihar Land Mutation Act, 2011 shall also be applied for the same words used in the Bihar Land Mutation Rules, 2012.

Chapter-II Process of filing Mutation Petitions

3.

Filing of petition for mutation

- [(1) "Any person acquiring an interest in a Jamabandi or a part thereof by any means/instruments, may file a petition in "Form-IA" in the office of the Circle Officer in whose jurisdiction the Jamabandi or part thereof is situated or before Circle Officer of the area, for mutation of his name in respect of that Jamabandi or a part thereof in the Continuous Khatian, Tenants' Ledger Register, Jamabandi Register and Khesra Register, which shall be maintained in the Halka and Circle Office, in "Form IB", "II", IIA and "III" respectively.]

[Substituted by Amendment Rules, 2017.]

(1A)

[Cases in which mutation petition is filed after maximum 90 days from the date of acquiring interest over any Jamabandi or part thereof before the Anchal Adhikari (Circle Officer) of the area, in such cases the petition for the condonation of delay shall be enclosed with such mutation petitions, showing reasons for delay, by the petitioner in prescribed Form-1AA.]

[Inserted by Amendment Rules, 2017.]

(2)

The following documents shall be enclosed with the mutation petition to be filed by the petitioner in Form- IA:-

(i)

Self-attested photocopy of registered deed in case of acquisition of interest in a holding or a part thereof through sale, gift and exchange.

(ii)

Self-attested photocopy of previous deed(s) or order(s), if any, in case the land has been transferred, without being mutated.

(iii)

Self-attested photocopy of Will along with its probate order passed by the competent court in case of acquisition of interest through Will.

(iv)

Self-attested photocopy of the order/decreed of the court in case of acquisition of interest through order/decreed of the competent court.

(v)

Self-attested photocopy of registered deed of partition in case of partition through registration.

(vi)

Self-attested photocopy of document showing consent of all cosharers and the signatures of the co-sharers which shall be duly identified by members of Panchyat Samiti / Sarpanch / Mukhia / Ward member / Panch in rural areas or Ward Commissioner in urban areas in case of partition by mutual consent.

(vii)

Self-attested photocopy of the documents showing the death of the ancestor and the petitioner as the successor of the deceased in case of acquisition of interest through succession.

(viii)

Self-attested photocopy of document of settlement / parcha of Bhoodan land issued by Bhoodan Yagna Samiti in case of settlement of Bhoodan Land.

(ix)

Self-attested photocopy of document of settlement / transfer / assignment of public land issued by the competent authority in case of acquisition of interest through settlement / transfer / assignment of public land such as Gair Mazarua

Malik / Khas, Gair Mazarua Aam, ceiling surplus land etc.

(x)

Self-attested photocopy of purcha issued under the Bihar Privileged Persons' Homestead Tenancy Act, 1947 in case of settlement under the said Act.

(xi)

Self-attested photocopy of tripartite registered deed in case of purchase of land for Mahadalit families under the Land Purchase Policy, 2010 of the Department of Revenue & Land Reforms, Government of Bihar.

(xii)

["Self attested photocopy of document showing restoration of Land or part thereof to the raiyat in case of restoration of land to the former raiyat or their descendants/Legal heirs under Land Acquisition Act, 1894, The Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (RFCTLARR Act, 2013) The National Highways Act, 1956 and The Railways (Special) Act, 2008.]

[Substituted by Amendment Rules, 2017.]

(xiii)

Self-attested photocopy of document showing restoration of land to former raiyat in case of restoration of land to former raiyat under the Kosi Area (Restoration of Land to Raiyat) Act, 1951.

(xiv)

Self-attested photocopy of the last rent receipt in respect of the holding or a part thereof for which petition for mutation is being filed, if available.

(xv)

[Self attested photocopy of the registered perpetual lease deed in respect of acquisition of land by the Departments/Boards/ Corporations of the State Government through Bihar Raiyati Land Lease Policy, 2014.]

[Inserted by Amendment Rules, 2017.]

(3)

["Mutation petitions will be received through two sources. Anchals notified for Online Mutation, mutation petitions will be received only through online and in those Anchals, which are not notified for Online Mutation, mutation petitions will be accepted on the RTPS Counter or in the Revenue Camp. On receipt of mutation petition either in the office or in the Revenue camp, the circle officer shall grant a receipt in "Form-IV" to the petitioner as an acknowledgement. Apart from these, on receipt of Registered Deeds online from Registration Offices, concerned Circle Officer will take suo-motu cognizance and start mutation record in maximum three working days and take steps for their disposal.]

[Substituted by Amendment Rules, 2017.]

(4)

The Circle Officer shall cause each mutation petition to be registered in order of their receipt in the Mutation Petition Register which will be maintained in the Circle Office in Form-V.

(5)

The Circle Officer shall cause to open a separate case record for each mutation petition in which case number, date of filing, names of the parties will be entered and every order/instruction/submission shall be recorded in the case-record along with the proceeding which shall be maintained date wise under the signature of the presiding officer.

(6)

The case records shall be opened and case number with the year of filing shall be given in the order of the receipt of petitions.

Chapter-III Initiation of Mutation Proceeding on the basis of intimation by Authorities

4.

Authorities to intimate Circle officers about acquisition of interest of a person in a holding or a part thereof.

(1)

In Case of registration of an instrument of transfer by way of salepurchase, gift, exchange, or by any other mode of registered transfer of a holding or a part thereof, the registering authority shall give notice in Form-VI to the Circle Officer of the area in whose jurisdiction the holding or a part thereof is situated, along with a copy of the registered deed and receipt of the landlord fee.

(2)

["The Authority which has passed the final order for settlement/ transfer/ assignment of Public Land, distribution of

ceiling surplus land under the Bihar Land Reforms (Fixation of Ceiling Area and Acquisition of Surplus Land) Act, 1961, distribution of purcha under the Bihar Privileged Person's Homestead Tenancy Act, 1947, purchase of raiyati land for Mahadalit families under the purchase policy of Raiyati Land under Mahadalit Development Plan, restoration of land to former raiyats or their descendants/Legal heirs under Land Acquisition Act, 1894, The Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (RFCTLARR Act, 2013) The National Highways Act, 1956 and The Railways (Special) Act, 2008 or Kosi (Restoration of Land to Raiyats) Act, 1951, grant of Bhoodan Land under Bhoodan Yajna Act, 1954 or grant of occupancy rights to a raiyat under the Bihar Tenancy Act, 1885, as the case may be, shall give notice of such order in Form-VII to the Circle Officer of the area in whose jurisdiction the land is situated.]

[Substituted by Amendment Rules, 2017.]

(3)

The Karmachari of the area shall visit the villages under his jurisdiction weekly and make public contact and obtain information about cases of transfer of land, partition, non-testamentary or testamentary succession or acquisition of interest in any holding or a part thereof by any other means/ instruments and shall record the information in the Contact Register to be maintained in Form-VIII. He will try to obtain signatures of persons conveying such information as far as possible. The Karmachari shall inform the Circle Officer about such acquisition of interest of a person in a holding or a part thereof in Form- IX.

Chapter-IV Enquiry and Report

5.

Enquiry and Report.

(1)

On receipt of petition for mutation or intimation by any authority about acquisition of interest in a holding or a part thereof or suo-motu if the Circle Officer is satisfied that there is an acquisition of interest in a holding or a part thereof sufficient to cause mutation, the Circle Officer of the concerned Circle shall initiate a mutation proceeding by giving an order in the respective case record for a detailed enquiry report from the Karmachari and Circle Inspector and shall cause the order to be communicated in Form-X to the Karmachari and Circle Inspector within two days.

(2)

In case of mutation in a regular Court, the Circle Officer shall immediately issue general notice in Form-XI inviting objections from general public of the locality where the land or a part thereof is situated and specific notices in Form-XII inviting objections from the jamabandi raiyat from whose jamabandi the land is proposed to be deducted, transferee, transferor in case the jamabadi raiyat is not the transferor and all other persons who have interest in the land or a part thereof.

(3)

The general notice shall be published by pasting it at the prominent places of the locality where the land or a part thereof is situated as well as by displaying it on the notice board of the concerned Panchayat Bhawan.

(4)

The specific notice shall be served to the person against whom the notice has been issued or to the next of his kin. However, if he refuses to accept the notice, it shall be served by pasting it on the front door/wall of his residence and the person responsible for serving it will obtain signature of the panchayat representatives, village chowkidar and other local residents, to this effect as far as possible and that will be deemed to be the proper service of the notice.

(5)

In case of service of notice to a minor or a person of unsound mind, the notice shall be served on the guardian of the minor or the person of unsound mind, as the case may be, in the manner as mentioned in the foregoing sub rule (4).

(6)

The period of notice shall be of 14 days.

(7)

The place, date and time, where on, which and when the case will be heard in the court of the Circle Officer shall be clearly shown in the notice.

(8)

In case of mutation in a camp court, objections shall be invited in the camp itself by making announcement to this intention through loudspeaker and other means.

(9)

The Karmachari shall make detailed enquiry about the land, verify it from revenue records and make local enquiry and shall submit detailed enquiry report in Form XIII to the Circle Inspector within 3 days of the communication of the order for enquiry.

(10)

The enquiry report of the Karmachari in Form XIII shall contain detailed information of land in question including inter alia the following:-

(i)

Mode of enquiry (local enquiry, verification from revenue records etc.);

(ii)

Nature of land such as raiyati/Gair Mazarua Malik/Khas, Gair Mazarua Aam/Khas Mahal/Ceiling surplus/Bhoodan etc;

(iii)

The instrument of transfer of land such as purchase, gift, succession, exchange, partition, settlement etc along with the details of the instrument;

(iv)

Jambandi number, the name of the jamabandi raiyat and plot wise total area of the land in the jamabandi;

(v)

Plot wise area of the land to be left in the jamabandi after mutation of the land in question;

(vi)

Relation of the transferor with the jamabandi raiyat in case the jamabandi raiyat is not the transferor and the right of the transferor to transfer the land;

(vii)

The coherence of previous deed (s)/order (s) annexed with the petition in the context of mutation;

(viii)

Land being used for religious/social purposes such as temple/ mosque/burial ground/cremation ground etc;

(ix)

Physical possession over the land;

(x)

Pendency of Title Suit in the competent court concerning the land or a part thereof for the mutation of which petition has been filed;

(xi)

Any other dispute.

(11)

The Circle Inspector shall verify the enquiry-report of the Karmachari submitted in Form XIII and clearly record whether he agrees with the report of the Karmachari or not. The Circle Inspector shall also make recommendation with regard to maintainability of the mutation petition or its rejection to the Circle Officer and shall submit his report to the Circle Officer in the same Form XIII within 3 working days of the receipt of the enquiry report from the Karmachari.

(12)

In case the Circle Officer is not satisfied with the enquiry report of the Karmachari and Circle Inspector, he may enquire the same himself in any manner he deems fit and shall record his findings in the case record along with the date of enquiry.

Chapter-V Disposal

6.

[Disposal of Mutation Cases in Regular Court.

[Substituted by Amendment Rules, 2017.]

- Mutation petitions received on the RTPS Counter will be disposed of in the regular court of the Circle Officer. The Circle Officer will get enquiry report of Halka Karamchari and Revenue officer on receipt of such mutation petitions or enquire the matter on his own and issue general notice in Form-xi and specific notice in Form-xii. After expiry of the period of filing objections, shall dispose of in his regular court in the following manner:-

(i)

Cases in which no objection has been received, shall be disposed of by passing such order as the Circle Officer deems

fit within 18 days of the receipt of the mutation petition.

(ii)

Cases in which objections have been received, shall be disposed of by passing such order as the Circle Officer deems fit after giving reasonable opportunity to the parties concerned of being heard and adduce evidence, if any, within 60 working days of the receipt of the mutation petition.

(2)

(i)

Anchals notified for Online Mutation, mutation petitions will be submitted to the Anchal Adhikari online. Enquiry reports of Halka Karamchari and Revenue Officer with regard to such mutation petitions will be received through online mutation software. After perusal of such enquiry reports Circle Officer will pass his order through online mutation software and in such cases Digitally Signed correction slips in Form-xiv will be made available to the petitioners through online mutation software or petitioners will get Digitally signed such correction slips from the Anchal Office.

(ii)

After integration of Anchal Offices with Registration Offices, Registered Deeds will be made available to the Anchal Offices through online and after receipt of such Registered deeds online, the Circle Officer will take suo-motu cognizance and start mutation record within three maximum working days. The Circle Officer will get reports of Revenue Karamchari and Revenue Officer online through online software or Anchal Adhikari will enquire the matter on his own. After receipt of such enquiry reports or after making enquiry by the Anchal Adhikari, general notice will be issued in Form-XI and specific notice in Form-XII. After perusal of enquiry reports, the Circle Officer will pass his order online through online software and issue Digitally signed correction slip in Form-XIV and make available the same to the petitioner through Online Mutation Portal or the petitioners will get Digitally signed correction slips from the Anchal Office. After expiry of the period of filing objections or after completion of hearing with regard to objections received, mutation cases will be disposed of through Online Mutation Software. Cases in which objections are not received, will be disposed of within 18 working days and in such cases in which objections are received, will be disposed of within 60 working days.

Thus the whole process of receiving mutation petitions or copy of Registered deeds from Registration Offices and disposing of such mutation cases will be done online, so that petitioners/those acquire interest over the land or part thereof will be in a position to know different stages of disposal of mutation cases.

7.

Disposal of mutation cases in camp court.

- (i) Revenue Court Camps will be held at a selected place for one or a group of Revenue Halkas. On receipt of mutation petition in the camp the Circle Officer shall grant a receipt in Form-IV to the petitioner as an acknowledgement. All the mutation petitions received in the camp shall be entered into the Mutation Petition Register maintained in Form-v. All the undisputed cases of mutation will be disposed of in the camp on the same day and correction slips will be made available to the petitioners and accordingly Jamabandi Register will be updated and Rent receipt will be issued to the petitioner. After completion of Revenue Camp Court, all mutation petitions received in the camp will be entered into RTPS Counter functional in the

(ii)

Enquiries shall be made within a fortnight in such cases, in which objections are received in the first camp and after hearing properly in the second camp court to be held within 15 days at the same place, such mutation petitions shall be disposed of. In cases, in which enquiry and hearing is not possible in 15 days period, such mutation cases shall be transferred to the regular court of the Circle Officer, where after hearing concerned parties and after giving proper opportunities to produce papers in their support, the Circle Officer shall pass orders and dispose of, as he deems fit, such mutation petitions within 60 working days. Mutation cases related to succession and mutual partition shall be disposed of on priority basis in camp courts, so that Jamabandi Register is updated and Jamabandies in the names of

(iii)

Online Mutation petitions will be received in Revenue Camp Courts also in such Anchals which are notified as Online Mutation Anchal. Such mutation petitions will be entered into computer software in the camp itself and such mutation petitions will be disposed of online. Cases in which no objection has been received shall be disposed of through online software in the Revenue Court on the same day and correction slip will also be issued same day. Thus the process of online disposal of mutation cases will be followed in the camp. Disputed cases in which objections have been received

online in the camp, which cannot be disposed of in the first camp online, in such cases enquiry will be made in a fortnight and such cases will be disposed of online in the next camp. However, if it is not possible to dispose of disputed cases within 15 working days, such cases shall be transferred to the regular court of the Circle Officer, where after giving reasonable opportunity to the parties concerned, the Circle Officer will pass his order online within 60 working days. Thus mutation petitions received in the camp will also be disposed of online.]

8.

Intimation to the petitioner in case of rejection

-In case of the rejection of a mutation petition, the circle officer shall record the grounds in the order sheet of the case record on which it has been rejected and shall intimate the petitioner of the gist of the same in writing, either in person, through registered post or through special messenger.

[Such notice shall be given in Form-XIVA of these Rules.]

[Inserted by Amendment Rules, 2017.]

9.

Issuance of correction slip

-Cases in which mutations have been allowed, the Circle Officer shall issue correction slip in four copies to give effect to his order for mutation in Form-XIV within 3 working days of the order for mutation. One copy of the correction slip shall be enclosed in the case record, two copies shall be given to the Karmachari of the concerned halka, while the last copy shall be sent to the petitioner either through post or through messenger. The Karmachari shall make necessary alteration in the entries of the Continuous Khatian, Tenants' Ledger (Register) and Khesra Register to give effect to the order of the Circle Officer for the mutation of the land in question as reflected in the correction slip.

10.

Alteration in the entries on the basis of correction slip

- The Karmachari shall deduct the land in question from the jamabandi concerned in accordance with the mutation order as shown in the correction slip and revise the demand of rent and cess accordingly and shall enter the land with details such as khata number, khesra number and the area of land in the jamabandi of the transferee and shall revise the demand of rent and cess accordingly. If the transferee does not have a jamabandi then a new jamabandi shall be created in the name of the transferee and the land shall be entered with its details and the demand of rent and cess shall be fixed. The Karmachari shall enter the number of the jamabandi of the transferee in the correction slips and one copy of the correction slip shall be returned to the Circle Office within 3 working days of the receipt of the correction slips. The remaining copy of the correction slip shall be maintained in the guard file of the halka. On receipt of the copy of the correction slip bearing jamabandi number of transferee the Circle Office shall enclose it in the case record and produce it before Circle Officer. The Circle Officer shall enter the jamabandi number of the transferee in the order sheet and order for the closure of the case record.

10A.

[

[Inserted by Amendment Rules, 2017.]

As and when mutation is allowed in the name of transferee and accordingly correction slip is issued in Form-XIV, new Jamabandi will be started in Jamabandi Register-2(A). Moreover, changes will also be made in Continuous Khatian and Khesra Register accordingly.

10B.

After allowing mutation and also after starting Jamabandi in the name of transferee, the Revenue Karmachari shall issue rent receipt in Form-XIVB.]

11.

Appeal.

(1)

Any person aggrieved by the order of the Circle Officer may file an appeal against the order in the Court of Land Reforms Deputy Collector concerned within thirty (30) days from the date of the order.

(2)

The Land Reforms Deputy Collector may condone the delay in filing appeal provided he is satisfied that there are sufficient reasons for the delay.

(3)

As soon as an appeal against the order of the Circle Officer is filed, the Land Reforms Deputy Collector shall call for the case-record from the Circle Officer concerned.

(4)

The Land Reforms Deputy Collector shall issue notice to all parties concerned with the case, directing them to appear either in person or through their authorized representatives on the date, time and place fixed for the hearing of the case.

(5)

In case any of the parties does not appear, even after a reasonable opportunity to appear and being heard has been given, the Land Reforms Deputy Collector may dispose of the case ex-parte on the basis of the available records.

(6)

The time limit for the disposal of the mutation appeal shall be of thirty (30) working days from the date of the filing of the mutation appeal.

(7)

After the disposal of the mutation appeal, the Land Reforms Deputy Collector shall return the case- record to the Circle Officer concerned for the implementation of his order.

(8)

On receipt of the case- record, the Circle Officer shall issue correction slip in the manner as provided in rule-9.

(9)

On receipt of the correction slip, the Karmachari shall alter the entries in the revenue records concerned in the manner as provided in rule-10.

12.

Revision.

(1)

Any person aggrieved by the order of the Land Reforms Deputy Collector, may file an application for revision in the Court of Collector/ Additional Collector of the District concerned within thirty (30) days from the date of the order.

(2)

The Collector/ Additional Collector concerned may condone the delay in filing of the application for revision provided he is satisfied that there are sufficient reasons for the delay.

(3)

As soon as the application for revision is filed, the Collector/ Additional Collector shall call for the case-record from the Land Reforms Deputy Collector concerned. or the Circle Officer concerned in whose custody the case-record lies.

(4)

The Collector/Additional Collector shall issue notice to all parties concerned with the case, directing them to appear either in person or through their authorized representatives on the date, time and place fixed for the hearing of the case.

(5)

In case any of the parties does not appear even after a reasonable opportunity to appear and being heard has been given, the Collector/Additional Collector may dispose off the case ex-parte on the basis of the available records.

(6)

The time limit for the disposal of the mutation revision application shall be of thirty (30) working days from the date of the filing of such application.

(7)

After the disposal of the mutation revision application, the Collector/ Additional Collector shall return the case- record to the Circle Officer concerned for implementation of his order.

(8)

On receipt of the Case-record, the Circle Officer shall issue correction slip in the manner as provided in rule-9.

(9)

On receipt of the correction slip, the Karmachari shall alter the entries in the revenue records concerned in the manner as provided in rule-10.

13.

Cancellation of Jamabandi.

(1)

Any person having interest in a land or a part thereof may file a petition for the cancellation of jamabandi before the

Additional Collector of the district in whose jurisdiction the land or a part thereof is situated, in Form-XV.

(2)

Authorised representative of any Department of the Government having its interest in a land or a part thereof may, for the cancellation of a jamabandi, make a reference to the Additional Collector under whose jurisdiction the land or a part thereof is situated.

(3)

The Additional Collector on receipt of a petition in Form-XV for the cancellation of jamabandi or on reference from an authorised representative of the Government Department having an interest in the land or a part thereof or suo motu, if he is satisfied that there is sufficient evidence that the jamabandi has been created in violation of any law or in contravention of an executive instruction, shall initiate proceeding for the cancellation of the jamabandi by issuing general notice in Form-XVI inviting objections from the public of the locality and specific notices in Form-XVII to persons having interest in the land and the part thereof including inter alia the persons having jamabandi of the land in question.

(4)

The general and the specific notices shall clearly mention the date, time and place of hearing.

(5)

The period of the notice shall be of 14 days.

(6)

The general notice and specific notices shall be served in the same manner as mentioned in the foregoing rule-5 (3), (4) and (5).

(7)

The Additional Collector may conduct inquiry about the matter either himself or through any other revenue officer under his jurisdiction and shall record the findings of the inquiry in the order sheet of the case record.

(8)

The Additional Collector after giving reasonable opportunity to the parties concerned, of being heard and adduce evidence, if any, shall pass such order as he deems fit.

(9)

The order shall be reasoned and the grounds, on which it is based, shall be recorded in the order sheet.

(10)

After the order for the cancellation of jamabandi, the Additional Collector, subject to Appeal /Revision shall direct the Circle Officer in whose jurisdiction the land or a part thereof is situated to cancel the jamabandi in the Continuous Khatian, Tenants' Ledger Register and Khesra Register.

(11)

The Additional Collector, after passing an order under foregoing rule 11(10), subject to Appeal/Revision, shall dispossess the person claiming land under the said jamabandi and restore the possession to the legitimate owner/custodian on such terms which may appear to be fair and equitable.

(12)

Cases in which dispossession of the person claiming the land on the basis of the cancelled jamabandi and restoration of the land to the legitimate owner/custodian is not possible without the use of force, the Additional Collector either himself restore possession or shall depute a Civil Officer under his jurisdiction and direct the Deputy Superintendent of Police in whose jurisdiction the land is situated to depute a police officer not below the rank of Assistant Sub Inspector with adequate force and shall dispossess the person claiming under the cancelled jamabandi and restore the possession to legitimate owner/custodian of the land by using such force as is necessary.

14.

Appeal.

(1)

Any person aggrieved by the order of the Additional Collector, may file an appeal against the order in the Court of Collector of the District within (30) thirty days from the date of the order.

(2)

The Collector of the District may condone the delay in filing appeal provided he is satisfied that there are sufficient reasons for the delay.

(3)

As soon as an appeal against the order of the Additional Collector is filed, the Collector of the District shall call for the case-record from the Additional Collector.

(4)

The Collector of the District shall issue notice to all parties concerned with case, directing them to appear either in person or through their authorized representatives on the date, time and place fixed for the hearing of the case.

(5)

In case any of the parties does not appear even after a reasonable opportunity to appear and being heard has been given to him, the Collector of the District may dispose off the case ex-parte on the basis of the available records.

(6)

After the disposal of the appeal, the Collector of the District shall return the case record to the Circle Officer concerned for implementation of his order.

(7)

On receipt of the case-record, the Circle Officer shall issue correction slip in the manner as provided in rule-9.

(8)

On receipt of the correction slip, the Karmachari shall alter the entries in the revenue records concerned in the same manner as provided in rule-10.

15.

Revision.

(1)

Any person aggrieved by the order of the Collector of the District, may file an application for revision in Court of Divisional Commissioner concerned within thirty (30) days from the date of such order.

(2)

The Divisional Commissioner may condone the delay in filing of the application for revision provided he is satisfied that there are sufficient reasons for the delay.

(3)

As soon as the application for revision is filed, the Divisional Commissioner shall call for the case-record from the Collector.

(4)

The Divisional Commissioner shall issue notice to all parties concerned with the case, directing them to appear either in person or through their authorized representatives on the date, time and place fixed for the hearing of the case.

(5)

In case any of the parties does not appear even after a reasonable opportunity to appear and being heard has been given, the Divisional Commissioner may dispose off the case ex-parte on the basis of the available records.

(6)

After the disposal of the revision application, the Divisional Commissioner shall return the case- record to the Collector concerned who shall send the case record to the Circle Officer concerned for implementation of the order.

(7)

On receipt of the case-record, the Circle Officer shall issue correction slip in the manner as provided in rule-9.

(8)

On receipt of the correction slip, the Karmachari shall alter the entries in the revenue records concerned in the manner as provided in rule-10.

16.

Preparation of Khata Pustika and its supply to the tenants.

(1)

The Karmachari of the concerned Halka, on the basis of the record of rights prepared under the Bihar Special Survey and Settlement Act, 2011 or under the law relating to the Consolidation of holdings, as the case may be, and subsequent changes on account of mutation due to transfer of land (as reflected in the Tenants' Ledger register in Form-II), shall prepare a Khesra register in Form-III for all revenue villages under his jurisdiction.

(2)

The Karmachari shall give a certificate under his signature with regard to the correctness of the entries of Khesra register. The Circle Inspector shall verify the entries of the Khesra register cent percent and record his certificate with

regard to the correctness of the entries of the Khesra register. The Circle Officer concerned shall verify at least 25% of the entries of the Khesra register and record his certificate of verification under his signature.

(3)

The Karmachari on the basis of the entries of the Tenants' Ledger register and Khesra register shall update the entries of the Continuous Khatian in Form-IB. The Karmachari shall give a certificate regarding correctness of the entries of the Continuous Khatian. Entries of the Continuous Khatian shall be verified cent percent by the Circle Inspector concerned who shall give a certificate with regard to the correctness of the entries of the Continuous Khatian. The Circle Officer concerned shall verify at least 25% entries of the Continuous Khatian and record his verification.

(4)

At the end of every financial year the working copy of the Continuous Khatian shall be submitted to the Circle Office. The Circle Officer shall get computerised copies of the Continuous Khatians prepared under his signature and seal on the basis of the entries of the Continuous Khatian. The Circle Officer shall get the working copy of the Survey map updated by the Anchal Amin or by the Licensed Surveyor.

(5)

With the advent of new financial year, one of the computerised copies of the Continuous Khatian of revenue villages shall be given to the Karmacharis of the respective Halkas for further updation during the financial year.

(6)

The Circle Officer, on the basis of the entries in the Continuous Khatian and Tenants' Ledger, shall get Khata Pustika of every tenant, bearing details of all land held by him in the revenue village, prepared in Form-XVIII.

(7)

The Circle Officer shall supply Khata Pustika to all tenants on payment of Rs. 20/-.

(8)

After every mutation of land the tenant concerned shall submit his Khata Pustika pertaining to the concerned revenue village before the Circle Officer. The Circle Officer shall forward the Khata Pustika to the Karmachari concerned for its updation and after its verification by the Circle Inspector, shall put his signature and return back the updated Khata Pustika to the concerned tenant.

(9)

The time limit for the updation of the Khata Pustika shall be of 7 days from the date of its submission before the Circle Officer.

17.

[Court Fee.

[Substituted by Amendment Rules, 2017.]

- On every Memorandum of appeal and revision petition, non-judicial stamp of Rs.50/- (fifty) shall be affixed by the aggrieved party against the orders passed in mutation case only. Compulsion for affixing non judicial stamp on mutation petitions is hereby deleted. Moreover, on the basis of e-Receipt above fee shall be deposited online also against the appeal and revision petitions.]

18.

Certified copies and informations.

- Any person interested in taking certified extracts or certified copies of the order sheet, correction slip, Continuous Khatian or Tenants' Ledger, shall apply in the concerned Circle Office along with a fee at the rate of Rupees 10/- per page. After the filing of an application along with the requisite fee, the clerk in charge shall prepare the certified copy sought and put it before the head clerk for comparison who shall issue it within 7 working days of filing the applicants under his signature after proper comparison. The applications filed and certified copies issued shall be maintained in a register which should be periodically verified by the concerned Circle Officer.

Form-1AA

(See Rule-3, Sub-Rule-3(1)(a))

Form of Petition for the condonation of delay

To,

The Circle Officer

Anchal

Sub-Division

District.....

Sir,

I/we.....Son/Daughter/Wife.....

.....Village.....

Post.....Police Station.....Anchal..... District..... submit mutation
petition in prescribed form for the mutation of following description of the land.

Khata no.

Kheshra no.

Area

Boundary

Revenue Thana no.

Revenue Mauja no.

With the mutation petition papers self attested photo copy of document related to acquisition of interest over the land is enclosed. Due to following reasons mutation petition could not be filed within 90 days from the date of acquisition of interest over the land -

(a)

(b)

(c)

..... I/we request you to kindly mutate above land in my/our name condoning the delay in filing mutation petition and also enter my/our name in concerned Revenue records with details of land mutated.

Yours faithfully,

Signature of the Petitioner(s)Date -

Jamabandi Register

Form-II(A)

(See rule-3, sub-rule-1)

District

Revenue Village/Revnuue Thana No.

Adhar No.

On which basis interest over the land has been acquired -

Detalils of land included in the jamabandi

Details of land deducted/added to the Jamabandi on
account of order by the competant authority

Nature of order-

Order no -

Date of order

(Details of land to be deducted)

Survey Khat

kheshra No

Unique kheshra Id.

Area

Boundary NSEW

Amount of Rent

Amount of Cess

Survey khat

kheshra No

Area

1

2

3

4

5

6

7

8

9

10

11

Sub Divison

Revenue Village/Revnuce Thana No.

E-mail Id

Details of land deducted/added to the Jamabandi

on account of order by the competant authority

(Details of land to be deducted)

Boundary NSEW

Demand of Rent Added

Demand of Cess Added

Effective Rent

Jamabandi No from where land has been deducted

Jamabandi No in which land has been added

Arrear

Current

Arrear

Current

Arrear

Current

12

13

14

15

16

17

18

19

20

Anchal

Halka/Panchayat

Jamabandi No.

Name and Address of Jamabandi holder

Mobile No.

Details of land deducted/added to the Jamabandi on

account of order by the competant authority

Details of land added

Survey Khat

kheshra No

Unique kheshra Id.

Area

Boundary NSEW

Demand of Rent Added

Demand of Cess Added

Effective Rent

Arrear

Current

Arrear

Current

Arrear

Current

21

22

23

24

25

26

27

28

29

30

31

Halka/Panchayat

Name and

Address of Jamabandi holder

Details of

land added

Details

of land deducted/added to the Jamabandi on account of order by
the competent authority

Balance

Survey

Khat

khesra

No

Unique

khesra Id.

Area

Boundary

Balance

Rent

Balance

Cess

Remarks

32

33

34

35

36

37

38

39

Form-XIVA

(See Rule-8)

Information Related to disallowance of Mutation

Shri/Miss/Smt. Son of/Daughter of/Wife of Resident of Village
.....ThanaPost Office CircleDistrict
..... is hereby informed that mutation proceeding initiated on the basis of mutation petition/on
information by court/authority or suo motu, which is related to case no....., Khata No....., Khesara

No....., Area....., Boundary....., Thana No.....
Mauja..... has been disallowed due to the following reasons :-
Reasons of dis-allowance of Mutation Petition
1.
2.
3.
.....
Signature of the Circle Officer
Name of the Circle Official seal
Date
Form-XIVB
(See Rule-10)
Rent receipt
1. Khata no
2. Khesara no
3. Area
4. Mauja/Thana
no.....
5. Jamabandi
no.....
6. Name of the
Jamabandi Raiyat and his Address
.....
Annual demand (Arrear and Current)- For Current Financial Year
Financial Year
Annual Rate
Arrear Demand
Current Demand
Interest
Total
Remarks (Arrear Financial Year-From - To)
Khesra Wise Rent
Cess
(Health Cess 50 percent of rent, Education
Cess-50 percent of rent, Agriculture Development Cess 20 percent
of rent, Road cess 25 percent of rent)
Total
Collection
Financial Year
Collection Against Arrear Demand
Collection Against Current Demand
Total Collection
Due Amount (Arrear from ?
which Financial Year upto which Financial Year)
Remarks
Rent
Cess
(Health Cess 50 percent of rent, Education
Cess-50 percent of rent, Agriculture Development Cess 20 percent
of rent, Road cess 25 percent of rent)
Total

Total Collection in words.

Rent was deposited by whom.....

Total Arrear.....

Name & Signature of Halka Karamchari

Date-.....

Form-XV

(See Rule-13, Sub-Rule-(1))

Form of Petition for the Cancellation of Jamabandi

To,

The Additional Collector

District.....

Sir,

I Son/daughter/wife of is a resident of village..... Post
office..... Thana Circle District I have
an interest in the following land but its Jamabandi has wrongly been opened in the name of
S/o /D/o/W/o

Sr. no.

Name of the Anchal

Revenue Village/Thana no.

Jamabandi No.

Details of Land

Name and Address of the Jamabandi raiyat

Khata no.

Khesara no.

Area of land

Boundaries

1

2

3

4

5

6

7

8

9

I am enclosing herewith the photocopy of documents showing my interest in the above land.

Therefore, I request you to kindly cancel the Jamabandi of the above mentioned land. List of enclosures :-

Yours faithfully

Signature of the PetitionerDated.

Related AI tags, queries and research notes

Translation